

1.

CASE #	CASE NAME	HEARING NAME
CVRI2406034	KELLEY vs COUNTY OF RIVERSIDE	MOTION TO COMPEL PLAINTIFF SHAWN KELLEY TO PROVIDE FURTHER RESPONSES AND DOCUMENTS IN RESPONSE TO DEFENDANT'S REQUESTS FOR PRODUCTION, SET TWO

Tentative Ruling: The Court DENIES the Motion without prejudice to refiling a code-compliant motion. While the moving party asserts: "defendant has complied with its meet and confer obligations," (Mtn. at p. 2, lines 13-14) the evidence before the Court does not bear that out. Defendant brings a Motion to Compel Further Responses to Request for Production. Prior to filing such a motion, the moving party is statutorily obligated to meet and confer with opposing counsel. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Cal. Civ. Proc. Code § 2016.040.) Moving defendant provides no evidence of a code-compliant meet-and-confer.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600219	OHYE vs AZAR	MOTION TO BE RELIEVED AS COUNSEL FOR DANNY OHYE

Tentative Ruling: The Court DENIES the Motion to be Relieved without prejudice. The Motion was served upon the client electronically. There is no evidence in the register of action that the client consented to electronic service.

3.

CASE #	CASE NAME	HEARING NAME
RIC1810028	ORIAN vs ALL PERSONS UNKNOWN CLAIMING ANY LEGAL OR EQUI	MOTION TO VACATE VOID JUDGMENT

Tentative Ruling: The Court GRANTS cross-complainants' requests (27) for judicial notice. The Court SUSTAINS cross-complainants' evidentiary objection #1 and OVERRULES objection #2. The Court DENIES the Motion to Vacate Void Judgment.

On February 4, 2026, Orrian filed the current motion to set aside the judgment as void, pursuant to CCP section 473(d) on the grounds that it was entered in violation of a bankruptcy stay. Orrian asserts that at the time the judgment was entered on January 7, 2026, there was a bankruptcy order that issues related to the subject property were to

be addressed in the bankruptcy court in the United States District Court in Las Vegas. Orian further asserts that there was no motion to lift or modify the bankruptcy order before entry of the judgment; therefore, this court lacked jurisdiction to enter judgment and the judgment is void. Orian further asserts that entry of the judgment violated her due process rights as it was entered without notice and opportunity to be heard.

In opposition, the Garcias assert that the bankruptcy action has been closed and inactive for years. Further, the bankruptcy court only retained jurisdiction over disputes concerning the Purchase Agreement whereby Catamount purchased the claims from the Chapter 7 Trustee, and efforts impeding Catamount's ownership and use of the assets pursuant thereto. The bankruptcy court did not retain jurisdiction to adjudicate all disputes concerning the Property or those involving subsequent owners of the Property. As the Garcias were not parties to the bankruptcy action or the purchase agreement, and the crux of the FACC concerns the Property rather than the purchase agreement, the bankruptcy court has no jurisdiction to adjudicate the FACC.

Next, the Garcias assert that Orian was served with the FACC and having made a general appearance in the cross-action waived any right to challenge its service. Orian's motion to strike and reply thereto constituted a general appearance in the cross-action; any alleged defects in the service of the cross-complaint and FACC were waived. Orian's failure to timely file a responsive pleading ultimately resulted in the default taken in July 2022. She has provided no explanation whatsoever for failing to move to vacate default and challenge the FACC through proper channels, which means Orian admits to the allegations in the FACC, even as she sought to challenge the evidence presented at trial on the merits, both orally at the prove-up hearing and through various filings. In addition, the Garcias assert that Orian is not entitled to relief under section 473(d) as she failed to identify clerical errors. Lastly, the Garcias assert that Orian has no grounds under any legal theory to vacate the judgment entered by this court.

CCP section 473(d) provides that "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

A judgment is void on its face if the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief. (*Carr v. Kamins* (2007) 151 Cal.App.4th 929, 933-934.) Orian asserts that this court's judgment granting the Garcia's default prove-up is void due to lack of jurisdiction based on two arguments, one the court lacked personal jurisdiction over her as she was not properly served with the FACC, and second that the court lacked subject matter jurisdiction as jurisdiction lays with the bankruptcy court with respect to the property at issue.

Orian's claim that the Court lacks personal jurisdiction over her is wholly meritless. She has made multiple general appearances in this matter, waiving any issues regarding lack of proper service.

Orian's claim that this Court lacked subject matter jurisdiction over the determination of title to the property fails on multiple grounds. The bankruptcy proceeding that Orian asserts has jurisdiction over the property at issue was a Chapter 7 bankruptcy filed by Anshu Pathak on November 19, 2019. Garcia's were not parties to the bankruptcy proceeding. The last entry in the bankruptcy case was September 29, 2022. More importantly, the Chapter 7 Trustee sold the bankruptcy estate's interest in certain causes of action to Catamount Properties 2018, LLC, including Pathak's interest in the real estate at issue in this case, on June 19, 2019. The bankruptcy court only retained jurisdiction with respect to the Purchase Agreement entered into between Trustee and Catamount.

Catamount then sold the property to Jorge Toscano on June 3, 2020, who later sold the property to the Garcias on May 20, 2021. Therefore, the bankruptcy court did not have subject matter jurisdiction over the Garcias' interests, as they were subsequent purchasers of the property. Further, on March 9, 2023, the Garcias moved the court to lift any potential stay, which the court granted on May 17, 2023, following the last entry in the bankruptcy proceedings. There was no longer any potential stay in effect at the time the court entered judgment in this case. Accordingly, the Court DENIES the motion.